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VIA Email

Hon. Michelle L. Phillips
New York Public Service Commission
Three Empire State Plaza
Albany, New York 12223-1350

Re: Case 18-E-0138 – Proceeding on Motion of the Commission Regarding Electric Vehicle Supply Equipment and Infrastructure

Dear Secretary Phillips:

Environmental Defense Fund hereby submits for filing in the captioned docket comments on behalf of itself, Interstate Renewable Energy Council, New York Battery and Energy Storage Technology Consortium, and Vehicle-Grid Integration Council in response to the November 6, 2025 Notice Soliciting Comments regarding issues related to the interconnection of electric load.

Respectfully submitted,

Cole Jermyn

STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

Proceeding on Motion of the Commission Regarding Electric Vehicle Supply Equipment and Infrastructure	**Case 18-E-0138**

COMMENTS OF ENVIRONMENTAL DEFENSE FUND, INTERSTATE RENEWABLE ENERGY COUNCIL, NEW YORK BATTERY AND ENERGY STORAGE TECHNOLOGY CONSORTIUM, AND VEHICLE-GRID INTEGRATION COUNCIL ON NOTICE SOLICITING COMMENTS REGARDING ISSUES RELATED TO THE INTERCONNECTION OF ELECTRIC LOAD

I. Introduction

On March 14, 2024, Con Edison filed its "Straw Proposal for Streamlined Queue Management in Electric Vehicle Make-Ready Program and Other Programs" ("Initial Proposal").[1] Department of Public Service Staff ("DPS Staff" or "Staff") used this Initial Proposal to begin the work of the Electric Vehicle Infrastructure Interconnection Working Group ("EVIIWG"), which aims to "streamline identified difficulties and barriers that affect the interconnection of EVs, building electrification, and any other associated processes that includes the interconnection application queue, review, and approval process."[2] After a stakeholder process including ten EVIIWG meetings over the course of 2024 and 2025 and an opportunity for informal written comments, Staff filed the final version of the "Department of Public Service Staff Modified Proposal for Streamlined Vehicle to Grid Queue Management in Electric Vehicle Make-Ready Program and Other Programs" ("Final Proposal") on April 11, 2025.[3] Environmental Defense Fund ("EDF"), Interstate Renewable Energy Council ("IREC"), New York Battery and Energy Storage Technology Consortium ("NY-BEST"),

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[1] Case No. 18-E-0138, *Proceeding on Motion of the Commission Regarding Electric Vehicle Supply Equipment and Infrastructure*, Straw Proposal for Streamlined Queue Management in Electric Vehicle Make-ready Program and Other Programs (Mar 15, 2024) [hereinafter "Initial Proposal"].
[2] DPS, Electric Vehicles Infrastructure and Interconnection Working Group (EVIIWG) Mission, Governance & Operations (March 2024), https://dps.ny.gov/system/files/documents/2024/02/eviiwg-governance-march2024-v2.pdf.
[3] Matter No. 24-00339, *In the Matter of EV Infrastructure Interconnection Working Group*, Modified Proposal for Streamlined Vehicle to Grid Queue Management in Electric Vehicle Make-Ready Program and Other Programs (Apr. 11, 2025) [hereinafter "Final Proposal"].

Vehicle-Grid Integration Council ("VGIC") and others filed formal comments on this proposal in July 2025.

On September 19, 2025, the Public Service Commission ("Commission" or "PSC") adopted the *Order Adopting Proposal for Queue Management with Modifications*.[4] As part of this Order, the Commission directed Staff to "advance a solution that could thoroughly and systematically address the interconnection of electric load, including the issues and solutions identified by the EVIIWG." On November 6, 2025, Staff issues a Notice Soliciting Comments on this topic.[5] These comments are responsive to that notice.

II. Recommendations

A. Flexible Interconnection

The Commission should adopt, and require the utilities to implement, a comprehensive flexible interconnection framework. Leaving this topic to the utilities' discretion will result in patchwork programs with inconsistent effectiveness. By setting a programmatic baseline for the options the utilities must offer, the Commission can ensure that all customers have the opportunity to participate and that grid benefits are maximized.

Flexible interconnections can help facilitate a decarbonized energy future, particularly as load from electric vehicle ("EV") charging and other electric end-uses (e.g., data centers, building electrification, etc.) is increasing quickly.[6] By allowing customers to interconnect EV charging under defined constraints, flexible interconnections can accelerate energization timelines, manage capacity shortfalls, and defer or avoid costly upgrade distribution system upgrades. Additionally, flexible interconnections can promote more equitable access to the grid and can contribute to downward pressure on rates.

Flexible interconnections accelerate the energization process by allowing customers to connect new resources under specific constraints more quickly. In both the medium and long-term, flexible interconnections can continue to streamline the energization process by deferring—or completely avoiding—costly and time-consuming grid upgrades, some of which can take years to complete.[7] Moreover, utilities traditionally rely on conservative assumptions to determine

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[4] Case No. 18-E-0138, *Proceeding on Motion of the Commission Regarding Electric Vehicle Supply Equipment and Infrastructure*, Order Adopting Proposal for Queue Management with Modifications (Sep. 19, 2025)
[5] Case No. 18-E-0138, *Proceeding on Motion of the Commission Regarding Electric Vehicle Supply Equipment and Infrastructure*, Notice Soliciting Comments on Load Interconnection (Nov. 6, 2025).
[6] *See generally* Casey Horan et al., *Let's Get Flexible: Considerations for Unlocking Grid Capacity Using Flexible Interconnection* (Feb. 2025), https://library.edf.org/AssetLink/q812pd5afr3hboi61cm503fprla5ge0p.pdf
[7] *See* Case No. 24-E-0364, *In the Matter of Proactive Planning for Upgraded Electric Grid Infrastructure,* Petition of

customers' energy requirements. By leveraging flexible connections and refining the process with which utilities estimate customers' actual needs, i.e., peak demand, load profile, etc., customers can continue to make use of existing hosting capacity.

With respect to distribution capacity shortfalls, flexible interconnections can unlock existing capacity and maximize potential for new and upgrading load, optimizing use of already available resources. Similarly, at least some flexible interconnections can enhance grid resilience and reliability by allowing utilities to dynamically respond to emergency grid events, such as peak demand surges or unexpected outages, by limiting or curtailing resources as necessary. Furthermore, by enabling smarter utilization of grid assets, flexible interconnections can facilitate the integration of DERs, including both flexible loads like EVs, and flexible generation like distributed solar, further strengthening grid stability and efficiency. In short, flexible interconnections can address grid capacity shortfalls while supporting the transition to a more adaptive, resilient, and decarbonized energy system. Lastly, flexible connection options may encourage adoption of customer-sited generation and/or energy storage to meet site needs where a full grid connection is unavailable, thereby supporting New York's Energy Storage Target and broader CLCPA goals.

In this context, we recommend framing flexible interconnection options under two use cases—bridging solutions and indefinite solutions—and three program designs: flat, scheduled, and dynamic. Each of these is defined and described in more detail below.

i. Flexible Interconnections Can Serve as Both Bridging Solutions and Indefinite Solutions

Flexible interconnections offer utilities an effective pathway both as bridging solutions that can defer costly infrastructure upgrades and as long-term, indefinite arrangements that can fully avoid certain investments. In the latter case, customers may elect to permanently limit their load as a way to ensure faster energization and/or make more efficient use of existing grid capacity, reducing the need for new infrastructure while enabling timely access to service. Taken together, both strategies can help ensure more cost-efficient buildout of infrastructure and can put downward pressure on rates.

When deployed as bridging solutions, flexible interconnections can help prevent overbuilding and support more appropriately sized, cost-effective infrastructure investments. Often

New York State Electric & Gas Corporation and Rochester Gas and Electric Corporation for Approval of Urgent Upgrade Projects and Associated Cost Recovery at 20 (Nov. 26, 2024); *See also* Consolidated Edison Company of New York, Inc. Urgent Projects Proposal at 21.

referred to as "phased" or "ramped" connections, these arrangements apply temporary limits that remain in place only until the utility completes the upgrades necessary to serve a customer's full requested capacity, at which point the customer's load limit is stepped up. This approach allows customers to energize sooner while ensuring that any eventual upgrades are appropriately justified and aligned with actual system needs.

In contrast, indefinite flexible interconnection agreements are well suited for customers who are willing to remain on constrained capacity limits permanently, or at least until they seek an alternative arrangement from the utility. These long-term options can provide meaningful certainty for both utilities and customers, optimize the use of existing assets, and help support a more efficient and adaptable grid as electrification—including EV charging—continues to grow. That said, indefinite arrangements will require consideration of potential mechanisms to compensate customers for voluntarily limiting their load, as discussed more below.

ii. Flat, Scheduled, and Dynamic Flexible Interconnections

Utilities should offer customers a menu of flexible interconnection arrangements, including at minimum flat, scheduled, and dynamic limit options. This will maximize program effectiveness, as customers with greater operational flexibility can take advantage of options that provide access to more grid capacity, while those with less flexibility can benefit from simpler, easier-to-implement arrangements.

First, flat (or static) flexible interconnections incorporate a fixed, firm, load limit that does not vary over time or in response to real-time grid conditions. This limit is set when the agreement is executed and remains constant from year to year. Flat load limits are particularly well-suited as interim, bridge-to-wires solutions in cases where a utility is planning or is currently constructing upstream upgrades; once those upgrades are completed, the customer's limit can be raised to reflect the newly available capacity until full nameplate service is reached. These arrangements—often referred to as "ramped" or "phased" connections—are already employed across the US through what is known as construction service, but they have not yet been formally recognized as a tool for accelerating energization timelines. Because flat load limits require no real-time communication or advanced controls, they represent the simplest and most immediately deployable form of flexible interconnection. Thus, flat limits offer a low-cost, low-complexity option for both utilities and customers and can begin alleviating interconnection delays for EV charging and other electric end uses in the immediate term.

Second, scheduled load limits provide firm capacity that varies over the course of a day based on terms defined in a flexible interconnection agreement. These limits may take the form of hourly values, broader time-block allocations, or other structured schedules that allow for predictable intra-day variations. Scheduled limits can also incorporate monthly or seasonal adjustments to better reflect shifting system conditions and customer needs. The most notable example of scheduled limits is illustrated by Southern California Edison's LCMS pilot, which operates based on preset limits without any real-time communication with the customer, meaning the customer's device is pre-programmed to automatically regulate its power usage.[8] Scheduled limits therefore offer customers greater access to grid capacity during off-peak periods while providing clear, dependable parameters, for managing load throughout the year.

Third, dynamic limits provide non-firm capacity that varies throughout the day and can be tied to real-time or forecasted grid conditions. These limits enable the customer's load to adjust based on the actual state of the grid. For example, during system events or peak demand periods, a customer's maximum allowable load can be constrained within a defined range, providing flexibility while maintaining grid stability. Pacific Gas & Electric instituted the most well-known dynamic flexible interconnection pilot (FlexConnect), which has seen success among large charging station developers such as Tesla and PepsiCo as well as stationary battery storage developers.[9]

Dynamic limits represent a more sophisticated approach to flexible interconnection with benefits and tradeoffs. For example, dynamic limits best suit utilities with greater visibility into their distribution systems, such as those that have deployed some form of a distributed energy resource management system ("DERMS"), and those that have established granular hosting capacity analyses and forecasting methods for expected electric loads like EVs, buildings and data centers. Such system investments can be costly, but improved grid visibility also unlocks more grid capacity and increases overall system efficiency and optimization. The active communication that dynamic flexible interconnections require also enables utilities to exercise real-time, active control during emergency events, enhancing system resilience. In contrast, a less sophisticated system tends to require more conservative load assumptions to avoid the risk of running up on grid constraints.

[8] SCE, Establishment of Southern California Edison Company's Customer-Side, Third Party Owned, Automated Load Control Management Systems Pilot (Advice Letter 5138-E and 5138-E-A) (January 16, 2023).

[9] *See generally* PG&E, PG&E FlexConnect Pilot, https://www.pge.com/assets/pge/docs/clean-energy/electric-vehicles/flexible-service-connection-pilot-overview.pdf. *See also* Jeff St. John, A new way to fix grid bottlenecks for EV charging: flexible connection (Canary Media, Dec. 10, 2024), https://www.canarymedia.com/articles/transmission/a-new-way-to-fix-grid-bottlenecks-for-ev-charging-flexible-connection.

Importantly, utilities can implement some types of dynamic flexible interconnections without sophisticated DERMS (e.g., through simple calculated and communicated export limits, or by leveraging Advanced Metering Infrastructure), though a DERMS may be necessary where the utility requires certain types of operational grid visibility.

Where utilities fall on the spectrum of what they can offer between a simpler, flat limit and a more sophisticated dynamic limit will depend on the utility's circumstances, including their distribution system needs and their visibility into the system. Dynamic limits may require additional investment in granular data and more sophisticated technology to manage load and ensure reliable communication and grid safety, which will increase costs. However, a more dynamic limit can yield significant benefits by unlocking grid capacity and increasing system efficiency and optimization.

Providing this menu of flexible options will require a baseline level of technical and operational capability from utilities. In particular, some versions of dynamic, communications-based flexible agreements—where import limits adjust in response to real-time or abnormal grid conditions—may require deployment of a DERMS or equivalent platform capable of securely communicating with participating customers' equipment, though these systems may not be cost-effective in the near-term. Alternatively, flat and scheduled options, and some more dynamic options, can be offered before these tools are in place, providing customers with near-term pathways for participation while utilities continue to build the operations needed for dynamic approaches. These capabilities are essential for any flexible that relies on active, automated adjustments. In sum, utilities can offer a spectrum of flexible interconnection options—from simple to more sophisticated—that can be deployed both in the near term with minimal operational changes and, over time, as part of broader grid-modernization and orchestration efforts.

iii. Flexible Interconnections Require Clear Procedural Criteria

The optimal flexible interconnection structure will ultimately depend on what a customer is willing to accept, i.e., how much load reduction they can accommodate, for how long, and whether the benefits outweigh any operational or cost-related tradeoffs. As a result, utilities and customers must work collaboratively to identify arrangements that balance system needs with customer priorities. At minimum, utilities should offer a clear menu of options to serve a range of customer use cases and levels of flexibility. In addition, every flexible interconnection agreement should contain clearly defined parameters, including guaranteed minimum load limits that customers can rely on under all circumstances, regardless of system constraints or grid conditions. Utilities should also consider key questions related to the customer journey and any marketing, education, and outreach activities needed to facilitate access to flexible interconnection options. For example, does the utility filter all customer energization requests such that sites with expected energization timelines over a certain number of months are informed about flexible connection? Does the utility market flexible interconnection to common developers, key accounts, and/or other customer groups and await a customer's election of flexible connection?

Moreover, widescale adoption of flexible interconnections—especially long-term or indefinite arrangements where the utility does not build upgrades to eliminate capacity constraints—will also require thoughtful price signals and incentives to encourage meaningful customer participation. Since flexible interconnections can provide substantial system benefits, including avoided or deferred upgrades, improved asset utilization, and reduced congestion, any associated compensation structures should also reflect these. Thus, utilities should clearly define customer eligibility, the conditions under which compensation incentives apply, and how those payments are to be calculated. Doing so will not only encourage broader participation but also ensure that flexible interconnections deliver their intended value to both customers and the grid.

B. Interconnection Timeline Tracking

To understand the pace at which load projects are progressing through the energization process, the Commission should require utilities to track and report on timelines. This information would provide critical insights into whether utilities are processing applications in a timely manner to meet customer needs and state policy goals. Without this visibility, regulators and stakeholders cannot identify baseline or expected timelines by project type and size across utility territories or determine where streamlining may be necessary. And importantly, the state's decarbonization goals should help to inform whether current timelines are sufficient or whether other strategies are warranted to speed up the process.

There are many factors regulators must consider when determining how timelines will be tracked and reported, including what types of projects to track, how to track timelines, and reporting format and frequency.[10] These considerations will depend upon how the data will be used by regulators to monitor for potential policy reforms that may be needed. Below, we provide recommendations intended as a starting point that can be further refined through stakeholder discussions.

[10] *See* Environmental Defense Fund, Considerations for Energization Timeline Tracking (Oct. 2025), https://library.edf.org/AssetLink/glr8184366kkn2w36h547i4mhh551c81.pdf.

i. Track and separate out EV charger applications.

For utilities, connecting load is not a new phenomenon. However, the types of load projects connecting to the grid have expanded in recent years and now include increasing numbers of EV chargers. The viability of these projects can be significantly impacted by the time it takes to energize them. This can be due to the need to meet incentive deadlines or to match the timing of vehicle delivery schedules or the shortened construction timeframes for customer-side infrastructure as compared to residential or commercial building construction. Additionally, in order to meet New York's ambitious emission reduction goals, policymakers will need to understand whether the transition to EVs is happening at a quick enough pace. For these reasons, it is imperative to understand how long EV projects are taking to connect to the grid through regular tracking and reporting.

We recommend tracking all EV charger applications and categorizing the data by end use if all load projects are included. We also recommend breaking out small and large EV projects (e.g., projects less than 300 kilowatts and projects 300 kilowatts and above) to be able to compare timelines across applications of similar sizes and complexities. Con Edison already tracks and reports on timelines for EV charger projects 300 kilowatts and above through its Transportation Electrification Interconnection Timeline Earnings Adjustment Mechanism, so this type of categorization could complement and build on the reporting framework they already have in place.

ii. Start by tracking end-to-end timelines for ease of implementation.

Because a standardized set of steps has not been established across all regulated utilities, regulators should begin by requiring end-to-end timeline tracking and reporting. End-to-end timelines should include initial application submission through project energization. These simplified timelines are easier to implement and provide regulators with enough information to understand how quickly EV projects are moving through the full process. To ensure consistent reporting across utilities, we recommend that regulators establish clear reporting requirements, including a standardized reporting format and the data points utilities must provide.

One important consideration is how to account for partial energization of a project if the applicant chooses to utilize a phased connection agreement. In this case, utilities should report on both the date that the first phase of the project is energized and the date when the full project is online. It might be best to separate out phased connection timelines from other project timelines to avoid skewing the results for larger projects. If more data points are ultimately needed to assess the efficiency of the process or help identify the source of delays, regulators can then consider whether tracking timelines by process step and/or responsible party (i.e., the utility or applicant) would be appropriate.

iii. *Conduct a pace of energization study to determine whether policy reforms are necessary.*

Additionally, we recommend conducting an analysis to determine the pace of energization needed to meet the state's climate goals. With this information, regulators could then assess whether current timelines are sufficient or whether further improvements are necessary. A pace of energization study could be conducted by a state agency, such as the New York State Energy Research and Development Authority, or an outside consultant. We recommend working with stakeholders to assess currently available data that could be used and appropriate modeling and outputs that would provide the most value to regulators.

C. Harmonizing Load and Distributed Generation Interconnection

Energy storage systems (ESS) paired with EV chargers can provide significant benefits including immediate capacity to sites and is a load management technology that improves managed charging, particularly for medium- and heavy-duty fleets. As discussed in the Grid of the Future Flexibility Study, bidirectional EV chargers have incredible potential to unlock grid flexibility "by shifting charging load to an off-peak time period, where the demand on the grid is lower and the underlying costs to serve customers and/or grid greenhouse gas emissions are lower."[11] Managing charging loads will become increasingly important with a growing EV fleet, and bidirectional capability is an additional capability that can reduce strain on the grid. Presently, deployment of bidirectional chargers is disincentivized by a burdensome interconnection process and the lack of harmonization with the interconnection processes for unidirectional chargers paired with ESS.

i. *Address Misalignment of Timelines Between the EV Load Study and the SIR Process for ESS.*

Con Edison customers have identified a misalignment between the timing of the EV load study by the e-mobility team and the standardized interconnectionr requirements ("SIR") process by the coordinated electric system interconnection review ("CESIR") team. This misalignment is detrimental to the customer setting up EV load paired with energy storage because an EV load study may have a service determination and signed program agreement while a CESIR study is still in

[11] GOTF Vol 3 p14.

progress. Because the CESIR study is ongoing, there may be changes in service determination, which would affect the signed load agreement. This lack of transparency in service determination is costly and time-consuming for developers. We recommend greater alignment between load and generation/storage interconnection processes, which could be done through linking applications ID numbers, offering a single utility point of contact, or offering a joint application, among other solutions implemented by utilities in other states.

ii. *Develop Transparency and Fairness for Bidirectional Charger Interconnection.*

Beyond lack of transparency in service determination, bidirectional chargers are also disadvantaged compared to unidirectional chargers in gaining available capacity at a substation, due to lack of transparency in the interconnection queue. When a bidirectional charger paired with ESS is undergoing interconnection review, a unidirectional charger can claim the available substation capacity before the bidirectional project's CESIR study is complete. This gives unidirectional chargers an unfair advantage by effectively consuming capacity that the utility had indicated would be available to the bidirectional project. A publicly accessible EV interconnection queue (including load) would help developers plan electric vehicle supply equipment ("EVSE") projects in accordance with available capacity.

iii. *Expand Communication Between Distributed Generation and EV Load Utility Teams*

Customers of Con Edison have reported limited communication between the distributed generation and EV load utility teams when interconnecting a bidirectional charger paired with ESS. Increased transparency between the utility teams and the customer regarding project determination and timelines is critical to advance the adoption of vehicle-to-grid ("V2G") technology that will benefit the EV fleet of the future.

iv. *The ITWG should address both the distributed generation and load side of EV interconnections*

The EVIIWG has solely focused on load interconnection, while developing the EV Queue Management Proposal, while the ITWG is focused on resources that provide energy. With increasing capacity constraints at EV sites, developers will deploy distributed generation to provide load management. Due to the lack of transparency in the interconnection process for distributed generation paired with load, it is currently unattractive for developers to deploy load management technology in a time when capacity constraints need to be managed. EV load directly interacts with the interconnection process for bi-directional chargers at the same site; thus, the two processes should be harmonized together in discussion at the ITWG.

D. Clarifying Vehicle-to-Home Interconnection Policy

As deployment of bidirectional charging systems becomes more common, it is increasingly important for New York to distinguish between bidirectional charging systems **operating in bidirectional mode only when islanded** and those **enabled for parallel operation** with the utility grid. This distinction, not hardware capability alone, determines whether a bidirectional charging system creates any risk of exporting during normal grid operations, and therefore, whether it should trigger interconnection review.

The Department's Notice Soliciting Comments in Case 18-E-0138 asks stakeholders to identify barriers and solutions related to the interconnection of new electric loads, including those associated with transportation electrification. As EV adoption accelerates, many customers will install charging infrastructure that may also support optional bidirectional charging functionality. Without clear regulatory guidance distinguishing bidirectional charging systems **operating in bidirectional mode only when islanded** and those **enabled for parallel operation**, utilities may treat a large and growing population of EV customers as requiring DER interconnection review, even where those customers are simply installing charging load and not seeking grid-parallel bidirectional charging operation. The resulting ambiguity directly affects the efficiency, speed, and predictability of New York's load interconnection process, and therefore fits squarely within the questions DPS has asked stakeholders to address.

i. Systems Enabling Bidirectional Charging Only When Islanded Are Functionally Equivalent to a Backup Generator

A bidirectional charging system operating in bidirectional mode only when islanded functions by disconnecting the home from the utility grid before any power flows from the vehicle to household loads. Technical evaluations confirm that islanding is achieved using a microgrid interconnection device ("MID") operating under strict "break-before-make" logic. The MID physically opens the connection to the distribution grid, verifies isolation, and only then permits the bidirectional charging system to energize the home. Laboratory testing conducted by EPRI has validated and documented this sequence: upon grid loss, the MID disconnects, the inverter transitions to grid-forming mode, and only after isolation is confirmed does power flow from the vehicle through the EVSE to serve the home loads.[12] When grid power returns, the inverter ceases output before reconnection occurs.

[12] Electric Power Research Institute (February 2024) Vehicle-to-Home (V2H) System Backup Power Performance Evaluation: Lab Assessment of Ford F-150 Lightning and Ford Intelligent Backup Power System, available at https://www.epri.com/research/products/000000003002029045.

Other jurisdiction that have examined this architecture in detail have come to similar conclusions. For example, the Michigan Public Service Commission Rules that Ford's bidirectional charging system operating in bidirectional mode only when islanded from the grid "will not operate in parallel with the utility's distribution system" and therefore does not require interconnection authorization.[13] The underlying technical testimony emphasized that multiple layers of software gating, hardware isolation, and commissioning verification ensure that these systems cannot export when the grid is energized.[14]

ii. Systems Enabled to Operate in Bidirectional Mode in Parallel to the Grid Remain Distinct and Certainly Require Interconnection

Systems enabled in bidirectional mode when operating in parallel with the grid, whether for grid-parallel export (i.e., for credit under a tariff or program) or grid-parallel non-export (i.e., to meet site load, mitigating the consumption of energy from the grid), are fundamentally different than systems operating in bidirectional mode only when islanded. They require:

- activated software across the vehicle, EVSE, and inverter;
- phase-synchronized control logic;
- protection settings compliant with IEEE 1547;
- certification to UL standards to ensure compliance with IEEE 1547 requirements; and
- utility authorization prior to enabling grid-parallel bidirectional charging capability.

These systems should continue to follow New York's DER interconnection process to ensure the safety and reliability of the grid.

iii. Why This Distinction Matters for Improving the Load Interconnection Process

Without clear rules, utilities may default to treating any "bidirectional-capable" EV as a potential DER, creating unnecessary DER interconnection applications for what are, in practice, loads with optional islanded backup use. This would slow down DER interconnection queues, *tremendously* increase review burden on utilities (e.g., every EV or EVSE routed to a generation/storage interconnection process[15]), and create confusion for customers who are not

[13] Michigan Public Service Commission Case No. U-21619 (March 2025) Declaratory Ruling, available at https://mi-psc.my.site.com/sfc/servlet.shepherd/version/download/068cs00000f4FyXAAU.

[14] Michigan Public Service Commission Case U-21619 (September 2024) In the Matter of the request for a declaratory ruling by Ford Motor Company regarding home backup power and Michigan's interconnection rules, available at https://mi-psc.my.site.com/sfc/servlet.shepherd/version/download/068cs000009GJJIAA4.

[15] Nissan, Ford, GM, Tesla, Kia, Volvo, and Polestar currently offer compatibility with bidirectional charging systems. Honda, Hyundai, Rivian, and Lucid have announced offering this capability in the near-term. BMW, Mercedes-Benz, and Stellantis have also made public statements regarding bidirectional charging features.

seeking any functionality beyond charging their vehicles. To support DPS's goal of making load interconnection more efficient, New York should explicitly define:

- *Use Case 1: Bidirectional Charging Enabled Only When Islanded* – operates strictly when isolated from the grid; no parallel operation possible based on software gating, hardware isolation, and/or commissioning verification; no generation/storage interconnection review needed.
- *Use Case 2: Bidirectional Charging Enabled When Operating in Parallel- with the Grid* – enabled for bidirectional charging parallel to the grid, either exporting (i.e., for credit under a tariff or program) or non-exporting (i.e., to meet site load, avoiding consumption from the grid); full interconnection review required.

Providing this clarity will reduce administrative burden, ensure alignment across utilities, and protect the DER interconnection queue from unnecessary volume as EV adoption accelerates. As customer adoption of bidirectional charging systems become more common, it is increasingly important for New York to distinguish between these two types of systems.

III. Conclusion

EDF, IREC, NY-BEST, and VGIC thank the Commission for the opportunity to submit these comments and urge it to take action in support of load interconnection consistent with the recommendations outlined above.

Bidirectional charging products marketed for the light-duty vehicle market are available from Ford/Sunrun, GM Energy, dcbel, Tesla, and Wallbox, while ChargePoint, Autel, Emporia, Enphase, and SolarEdge have announced forthcoming bidirectional charging systems. Nearly every school bus manufacturer offers bidirectional charging compatibility with one or several chargers from Tellus Power Green, InCharge, and Heliox.

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